

BY-LAW NO. 2849.

A By-law to Regulate Traffic and the Use of
Streets in the City of Vancouver.

The Council of the City of Vancouver, in open meeting assembled, enacts as follows:

1. This by-law may be cited as the "Street and Traffic By-law".
2. This by-law is divided into two parts, dealing with the following subjects:

Part I Regulating Traffic
Part II Regulating Use of Streets.

INTERPRETATION

3. The following terms, whenever used in this by-law, or in any resolution of the Council dealing with traffic or parking matters, shall have the meanings respectively ascribed to them in this section unless the context otherwise required.
 - (1) "Boulevard" means that portion of a street between the curb lines or the lateral lines of a roadway, and the adjoining property line exclusive of the sidewalk.
 - (2) "Bus" means any vehicle for hire used for the transportation of passengers and operated in conjunction with any street railway transportation system in the City.
 - (3) "Business District" means the territory contiguous to and including a highway when fifty percent of the frontage thereon for a distance of three hundred feet or more is occupied by buildings in use for business.
 - (4) "Central District" means the area bounded as follows: by the west street line of Columbia Street from the Canadian Pacific Railway right-of-way to Alexander Street; by the north street line of Alexander Street from Columbia Street to Carrall Street; by the west street line of Carrall Street from Alexander Street to Pender Street; by the northerly street line of Pender Street from Carrall Street to Beatty Street; by the easterly street line of Beatty Street from Pender Street to Smith Street; by the northerly street line of Smith Street from Beatty Street to Burrard Street; by the easterly street line of Burrard Street from Smith Street to the Canadian Pacific Railway right-of-way north of Hastings Street.
 - (5) "City" means the City of Vancouver.
 - (6) "City Engineer" means the City Engineer of the City for the time being.
 - (7) "Chief Constable" means the Chief Constable of the City for the time being.

- (8) "Commercial Loading Zone" means an area or space on a roadway established by resolution of the Council for the loading or unloading of materials, to be used exclusively by commercial vehicles.
- (9) "Commercial Vehicle" means a vehicle engaged in carrying goods, wares or merchandise, and which bears a license plate issued pursuant to the Cab and Commercial Vehicles By-law.
- (10) "Council" means the Mayor and Aldermen of the City.
- (11) "Crosswalk" means that portion of a roadway ordinarily included within the prolongation of the lateral lines of sidewalks at intersections, and any portion of a roadway indicated for pedestrian crossing by lines or other markings.
- (12) "Driver" means any person who drives, operates, propels, or who is in physical control of, a vehicle.
- (13) "Emergency Vehicle" means any vehicle of the Fire Department, City or Provincial Police Departments, and any municipal or municipally licensed ambulance, and such vehicles of the armed forces or public utility vehicles as are designated as emergency vehicles by the Chief Constable.
- (14) "Intersection" means the area embraced within the prolongation of the lateral property lines of streets which join one another, whether such streets at the junction cross each other or merely meet at an angle without crossing each other.
- (15) "Lane" means any highway not more than thirty-three feet in width.
- (16) "Loading Zone" means the area or space on a roadway established by authority of this by-law for the loading or unloading of materials or passengers.
- (17) "Motor Vehicle" means every vehicle which is self propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails or tracks.
- (18) "One-Way Street" means a street designated by resolution of the Council as one upon which vehicular traffic shall move only in the direction indicated in such resolution.
- (19) "Park", "parking" or "parked" shall mean the standing of a vehicle, whether occupied or not, upon a roadway, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise, discharging or taking on passengers, or in obedience to traffic regulations or traffic signs or signals.
- (20) "Parking Stall" means a portion of the roadway indicated by markings as a parking place for one vehicle.
- (21) "Passenger Zone" means the area or space on a roadway established by authority of this by-law for the loading or unloading of passengers only.

- (22) "Pedestrian" means any person afoot.
- (23) "Person" includes any corporation, partnership, firm, association or party.
- (24) "Police Officer" means any member of the police force of the City or of the Provincial Police Force.
- (25) "Private Road" means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner.
- (26) "Right-of-Way" means the privilege of the immediate use of the roadway.
- (27) "Roadway" means that portion of a street improved, designed, or ordinarily used for vehicular travel.
- (28) "Safety Zone" means the area or space within a roadway defined and allotted by resolution of the Council for the exclusive use of pedestrians and which is marked or indicated by platforms, structures, standards, markers, painted lines, or any combination thereof.
- (29) "Semi-Trailer" means every vehicle with or without motive power designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.
- (30) "Sidewalk" means that portion of a street between the curb lines or the lateral lines of a roadway, and the adjacent property lines improved by the laying of concrete, gravel, planks or other material for the use of pedestrians.
- (31) "Sidewalk Crossing" means that portion of a sidewalk permanently improved or designed for the passage of vehicular traffic.
- (32) "Stop" when required means complete cessation of movement.
- (33) "Stop" or "stopping" when prohibited means the coming to rest of a vehicle except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic-control signal or traffic sign.
- (34) "Street" or "Highway" includes any way, road, lane, alley, avenue, sidewalk, thoroughfare, drive, bridge, viaduct, square, or open space, which is open to the use of the public as a matter of right, for the purpose of traffic.
- (35) "Street-line" when used in this by-law, or in any resolution passed pursuant thereto, means the dividing line between any private property and the adjoining street.
- (36) "Street-car" means every device operated exclusively on rails for transporting persons or property, other than cars or trains propelled or moved by steam.

- (37) "Through Street" Means any street or portion of street designated by resolution of the Council as a through street at which vehicles shall stop before entering thereon.
- (38) "Traffic" means pedestrians, ridden or herded animals, vehicles, street-cars, and other conveyances, either singly or together, while using any street.
- (39) "Traffic-control signal" means any authorized device, manually, electrically or mechanically operated for the regulation of traffic.
- (40) "Traffic sign" means any authorized sign, signal (other than a traffic-control signal), marking, or other device, placed, painted, or erected for the guidance, regulation, warning, direction, or prohibition of traffic, parking, or stopping.
- (41) "Trailer" means every vehicle with or without motive power designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.
- (42) "Truck Tractor" means every vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of a vehicle and load so drawn.
- (43) "Vehicle" shall include any device, in, upon or by which any person or property is, or may be transported or drawn upon a street irrespective of the motive power, including a horse led or ridden, but shall not include the cars of electric or steam railways running only upon rails.

PART I

REGULATING TRAFFIC

DELEGATION OF POWERS

4. The Council may by this by-law or any other by-law, or by resolution delegate to the City Engineer or such other official as may be named in such by-law or resolution any or all of the powers conferred upon the Council by Sub-Section (137a) of Section 163 of the "Vancouver Incorporation Act 1921".

5. (1) For the purpose of prohibiting, controlling or regulating traffic the City Engineer is hereby authorized to place, or cause to be placed, discs, standards, buttons, markers, painted lines, reflectors or other traffic signs to:

- (a) Mark lanes for traffic.
- (b) Mark crosswalks at intersections or at any other points as he may deem necessary.
- (c) Guide or warn traffic.

(2) The City Engineer and Chief Constable, or either of them, are hereby authorized to place, or cause to be placed, for temporary

periods, not exceeding thirty days at any one time, traffic signs indicating no parking:

- (a) At the entrances to dance halls, funeral parlours or other places of public assemblage during the period of assembly therein.
- (b) Upon either or both sides of any street or portion of street along the route of any parade or in the vicinity of large public gatherings.
- (c) At any other location where, under special circumstances, it is deemed necessary to facilitate or safeguard traffic.

(3) During the time such traffic signs are in place all other regulations with respect to parking in such places shall be deemed to be superseded by the no parking provision provided for in sub-section (2) of this section.

OBEDIENCE TO POLICE OFFICERS

6. Every person shall at all times comply with any lawful order, direction, signal or command made or given by a police officer in the performance of his duty in directing or regulating traffic. Police officers in order to expedite the movement of traffic or to safeguard pedestrians or property shall have full power to direct and regulate traffic and in doing so may disregard any traffic-control signal or traffic sign.

TRAFFIC SIGNS AND SIGNALS

7. Placing of Traffic Signs and Signals.

(1) The City Engineer shall place or install, or shall cause to be placed or installed, all traffic-control signals which may be authorized or ordered by resolution of the Council.

(2) The City Engineer shall place, or cause to be placed, traffic signs indicating the prohibition, limitation, or restriction of parking, stopping or movement by the drivers of vehicles as set out in any resolution of the Council.

8. Obedience to Traffic Signs and Signals.

Every pedestrian, the driver of every vehicle, and the operator of every street-car shall obey the direction, instruction, limitation, restriction or prohibition of any applicable traffic sign or traffic-control signal unless otherwise directed by a police officer, subject to the exceptions contained in this by-law respecting emergency and public utility vehicles.

9. Traffic-Control Signal Legend.

(1) Whenever traffic at any intersection is alternately directed to proceed or to stop by the use of traffic-control signals exhibiting the words "Go", "Caution" or "Stop" or exhibiting green, yellow or red lights successively one at a time, or with arrows, such lights, terms and arrows shall indicate as follows, except as provided in Section 14 hereof:

- (a) Green light or "Go", shall mean or indicate that traffic facing such signal may proceed across the

intersection, as herein directed (except vehicular traffic which shall yield the right-of-way to pedestrians and vehicles lawfully within the crosswalk or the intersection at the time such signal is exhibited);

- (b) Yellow light, or "Caution" or double red, when shown following the green "Go", shall mean or indicate that traffic facing the signal shall stop before entering the nearest crosswalk at the intersection unless so close to the intersection that a stop cannot be made in safety.
- (c) Red light, or "Stop", shall mean and indicate that traffic facing the signal shall not proceed until the green or "Go" signal is displayed, and moving traffic facing the signal shall stop before entering the intersection and remain standing until the green or "Go" signal is displayed.
- (d) Black with Green Arrow, shall mean vehicular traffic facing such signal may cautiously enter the intersection only to make the movement indicated by such arrow but shall not interfere with other traffic or endanger pedestrians lawfully within a crosswalk.

(2) Whenever pedestrian control signals are in place exhibiting the words "Walk", "Change", "Wait" or "Stop", or exhibiting yellow lights, successively one at a time, such terms and lights shall indicate as follows:

- (a) "Walk". Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by all drivers.
- (b) "Change" or yellow light. No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has commenced to cross the roadway on the "Walk" signal may continue across the roadway and shall be given the right-of-way by all drivers.
- (c) "wait" or "Stop". No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the "Walk" or yellow signal shall immediately get clear of the roadway.

(3) Flashing Signals - Whenever flashing red or yellow signals are used they shall require obedience by vehicular traffic as follows:

- (a) Flashing red (Stop signal). When a red lens is illuminated by rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.
- (b) Flashing yellow (Caution signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

10. Unauthorized Signs and Signals Prohibited.

No person shall place, maintain or display upon or in view of any street any unauthorized sign, signal, marking or device which purports to be, or is in imitation of or resembles any traffic-control signal or traffic sign, or which attempts to direct the movement of traffic or the parking of vehicles, or which hides from view or interferes with the effectiveness of any authorized traffic-control device.

11. Interference With Traffic Control Devices.

No person shall move, remove, deface, damage or alter, or obstruct the view of or otherwise interfere with any authorized traffic-control signal or traffic sign, or drive or walk on or over any newly painted line on any roadway the presence of which is indicated by red flags.

PEDESTRIANS RIGHTS AND DUTIES

12. Pedestrians' Right-of-Way at Crosswalks.

(1) When traffic-control signals are not in place or not in operation the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is travelling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger, but no pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield, subject to the provisions contained in this by-law. But no person who has alighted from a bus which has stopped at the near side of an intersection shall start to cross to the opposite side of the street upon which such bus is moving until such bus has moved away from its stopping place, unless such crossing is made in compliance with traffic-control signals or the direction of a police officer. This provision shall not apply where such bus has stopped at its regular terminus.

(2) The driver of any vehicle when passing a bus which has stopped at the side of the roadway to discharge passengers shall sound his horn and proceed past such bus with due caution for the safety of persons who may have alighted from such bus.

(3) Whenever any vehicle has stopped or slowed down at a marked crosswalk, or at any unmarked crosswalk at an intersection, to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such vehicle.

13. Crossing at other Than Crosswalks.

(1) Every pedestrian crossing a roadway at any point, other than within a marked crosswalk or within an unmarked crosswalk at an intersection, shall give the right-of-way to all vehicles upon the roadway.

(2) Within one block from an intersection at which traffic-control signals are in operation no pedestrian shall cross the roadway at any place except within a crosswalk.

(3) Notwithstanding the provisions of this section, every driver of a vehicle shall exercise due care for the safety of pedestrians, and shall give warning by sounding the horn when

necessary, and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.

14. At Controlled Intersections.

At intersections where traffic is controlled by traffic-control signals or by a police officer, the driver or operator of a vehicle or street-car shall give the right-of-way to pedestrians within a crosswalk who are crossing the roadway on a green or "Go" signal, or in accordance with the direction of a police officer.

15. Use Right Half of Crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.

16. Pedestrians Soliciting Rides.

No person shall stand in a roadway for the purpose of soliciting a ride from the driver of any vehicle except a public passenger conveyance.

17. Boarding or alighting from Street-Cars or Vehicles.

(1) No person shall board or alight from any street-car or vehicle while such street car or vehicle is in motion.

(2) No person shall step into any roadway to board a street-car, or stand in any roadway (except in a safety zone) waiting for a street-car, unless such street-car is within one hundred and fifty feet of the regular stopping place of such street-car.

SAFETY ZONES

18. Driving through Safety Zone.

No driver of a vehicle shall at any time drive such vehicle through, against, over, or upon a safety zone, or any portion thereof, whether such safety zone is occupied by any person at the time in question or not.

19. Passing to Left of Safety Zone.

The driver of any vehicle may pass to the left side of any safety zone when the car track adjoining it is not occupied by a street-car and such passage can be made in safety and without interfering with street-car or other traffic.

20. Passing Street-Cars at Safety Zones.

The driver of a vehicle need not stop such vehicle before passing a street-car which has stopped to discharge or take on passengers at a safety zone, but may proceed past such street-car at a speed not greater than is reasonable and proper and with due caution for the safety of traffic, and in any event at a rate of speed not exceeding ten miles per hour.

STOPPING AND PARKING

21. General Stopping Prohibitions. (See also General Parking Prohibitions, Section 22).

(1) No person shall stop a vehicle

(a) On a sidewalk.

(b) Within an intersection unless traffic signs indicate that stopping is allowed.

(c) On a crosswalk.

(d) Within twenty feet of the street-line of any intersecting street excepting lanes.

(e) Within twenty feet of the approach side of a crosswalk

(f) Within five feet of the street-line of any intersecting lane.

(g) In front of, or within five feet on both sides of, a private road or sidewalk crossing.

(h) Within twenty feet upon the approach side to any stop sign.

(i) Within twenty feet of a firehall on that side of the street on which such firehall is located, or within seventy-five feet of such firehall on the opposite side of said street, or within such other distance as may be indicated by traffic signs.

(j) Within fifteen feet of a fire hydrant.

(k) Alongside or opposite any street excavation or obstruction when such stopping would obstruct traffic.

(l) At any place where traffic signs prohibit stopping.

(m) Between any safety zone and the adjacent curb, or within twenty-five feet of either end of any safety zone.

(n) Upon any bridge, viaduct or other elevated structure forming part of a street.

(o) On any portion of a street indicated by traffic signs as reserved for any class of vehicles, other than a vehicle coming within such class and which is readily recognized as such.

(2) No operator of a street car shall stop such street car within an intersection or on a crosswalk.

22. General Parking Prohibitions. (See also General Stopping Prohibitions, Section 21)

No person shall park a vehicle

(a) On any boulevard which has been improved by the planting of grass or shrubs.

(b) On any street at intersections where street-cars stop for the purpose of allowing passengers to enter or alight therefrom, at a lesser distance than fifty feet from the near boundary of such intersections measured along that side of the street where such street-car stop is situated.

(c) On that side and portion of any street upon which any school or school property abuts, on any school day between the hours of eight o'clock in the forenoon and five o'clock in the afternoon.

(d) On the paved portion of any street without curbs where the pavement thereof is twenty feet or less in width.

(e) In any business district, on that side and portion of any street upon which any building in course of construction or demolition abuts.

(f) At any place where traffic signs prohibit parking.

(g) On that part of any roadway within a distance of twenty feet on both sides of the centre of the main entrance or exterior vestibule of any hotel or theatre unless otherwise marked by traffic signs.

(h) On any portion of a street for a longer period of time than that indicated on any traffic sign applicable to that portion of the street where such vehicle is parked.

(i) More than two hours between the hours of one o'clock in the morning and six o'clock in the morning on any street, subject, however, to the time limit as provided in Section 23; provided that during a state of war the provisions of this clause shall not apply to the parking of vehicles used by and in charge of any person employed at night in any war industry on those streets designated by resolution of the Council as being in the immediate vicinity of a war industry.

(j) Where any area is subject to a parking time limit, but within such area a smaller area is made subject to a lesser parking time limit, the time limit set for the smaller area shall apply to such area notwithstanding the time limit set for the larger area.

23. Thirty Minute Parking at Night.

No person shall park any vehicle for a longer period than thirty minutes between the hours of one o'clock and six o'clock in the morning of any day on any street or lane within the following-described areas, that is to say:

(1) Bounded on the north by Burrard Inlet; on the east by the west property line of Gore Avenue; on the south by the north property line of Prior Street, False Creek, Canadian Pacific Railway False Creek Yards, and the south property line of Pacific Street and Beach Avenue; and on the west by the easterly boundary of Stanley Park; unless such driver has applied for and been granted special permission by the Council to park such vehicles for a longer period when such driver has satisfied the Council that he is employed between one o'clock and six o'clock in the morning;

(2) On Granville Street from Pacific Street to Sixteenth Avenue.

24. Stopping in Lanes.

(1) No person shall stop a vehicle in any lane within the area described as follows, that is to say:

Bounded on the north by Burrard Inlet; on the east by Gore Avenue; on the south by Prior Street, False Creek and Smithe Street; and on the west by Burrard Street; and also in those lanes paralleling Granville Street lying immediately to the east and west thereof between Smithe Street and Pacific Street.

Provided that a commercial vehicle may be stopped in any such lane only while the same is in the actual process of being loaded or unloaded.

(2) No person shall stop a vehicle in any lane in such a manner or under such conditions as to leave available less than ten feet of the usable travelled portion of such lane for the free movement of vehicular traffic.

(3) No person shall stop a vehicle in any lane opposite to, or in such close proximity to another vehicle already stopped in such lane, in such manner as to obstruct the free movement of vehicular traffic in such lane.

(4) No person shall stop a vehicle in any lane in such a position or manner as to obstruct the free movement of vehicular traffic into or out of any driveway or private road adjoining such lane.

25. Parking or Stopping Close to Curb.

No person shall stop or park a vehicle in a roadway other than parallel with the curb or edge of the roadway, headed in the direction of traffic, and the curb-side wheels of the vehicle within six inches of the curb or edge of the roadway, except as provided in the following section.

26. Angle Parking.

Upon those streets which have been marked or signed for angle parking, the driver of a vehicle shall park such vehicle at the angle to the curb indicated by such marks or signs and parallel to and between such marks and as close to the curb as practicable. But in no event shall such driver park any vehicle so as to leave any portion thereof at a greater distance than seventeen feet from the curb at which it is parked. Where angle parking is indicated by signs only the angle of parking shall be forty-five degrees.

27. Parking in Parking Stalls.

Where parking stalls have been marked on any street no driver shall park any vehicle otherwise than between the lines or markings indicating the limits of a single stall, except in the case of a vehicle being of greater length than that of a parking stall, in which case such vehicle shall not occupy nor encroach upon more than two parking stalls.

28. Unattended Parked Vehicle.

No person having control or charge of a motor vehicle shall permit it to stand unattended on any perceptible grade on any street without turning the front or rear wheel to the curb or side of the roadway. (See extracts from Motor Vehicle Act Regulations at back of book regarding setting of brakes on unattended vehicle.)

LOADING, COMMERCIAL AND PASSENGER ZONES

29. (1) Loading zones, commercial loading zones, and passenger zones may be located and established by resolution of the Council. Unless such resolution limits the hours during the day when said zones shall be in effect, they shall be in effect for the full twenty-four hours of each day.

(2) The City Engineer is authorized to locate and establish

(a) Loading zones adjacent to the main entrance to any hotel,

(b) Passenger zones adjacent to the main entrance to any theatre,

where in his opinion traffic conditions warrant the installation of such zones respectively. All such zones established by the City Engineer pursuant to this sub-section shall be of such area and size as he may in his discretion deem advisable, and shall be in effect for the full twenty-four hours of each day.

(3) The City Engineer shall erect, or cause to be erected, traffic signs indicating or marking all loading zones, passenger zones and commercial zones, located and established pursuant to this section. If the resolution establishing such zones shall limit the hours when they shall be in effect, such limitation of hours shall be indicated on the traffic signs so erected.

(4) No driver of any vehicle shall stop such vehicle

(a) In any loading zone except for the purpose of loading or unloading of passengers or materials;

(b) In any passenger zone except for the purpose of loading or unloading of passengers, provided however that the driver of any armoured vehicle used for the purpose of conveying cash and other securities, may stop such vehicle in a passenger zone while picking up or making delivery of any cash or other securities.

(5) No driver of any vehicle shall stop such vehicle

(a) In any loading zone for a period exceeding three minutes for the loading or unloading of passengers or for a period exceeding thirty minutes for the loading or unloading of materials.

(b) In any passenger zone for a period exceeding three minutes.

(6) Notwithstanding anything contained in this section, no driver of any vehicle other than a commercial vehicle shall stop in any commercial loading zone, and then only while actually engaged in loading or unloading materials.

THROUGH STREETS AND "STOP" SIGNS

30. City Engineer Shall Place "Stop" Signs.

The City Engineer shall place or cause to be placed traffic signs indicating stop at through streets or at any other location where the Council has authorized "stop" signs to be placed.

31. Stopping at "Stop" Signs.

The driver of every vehicle and the operator of every street-car shall stop such vehicle or street-car

(a) before entering any through street where "Stop" signs have been placed,

(b) at any other location where "Stop" signs have been placed by authority of the Council, before proceeding past such "Stop" sign.

ONE-WAY STREETS

32. No driver shall operate a vehicle on a one-way street except in the direction indicated by a traffic sign.

DRIVING ON STREET-CAR TRACKS

33. (1) The driver of any vehicle while proceeding upon any street-car track in front of any street-car upon any street shall forthwith remove such vehicle from such tracks as soon as practical after signal of operator of street-car in order

that such street-car may proceed free and uninterrupted.

(2) When a street-car has commenced to cross an intersection, no driver of any vehicle shall drive such vehicle upon, along, or across the car tracks within such intersection immediately in front of such street-car.

FUNERAL AND OTHER PROCESSIONS

34. (1) No driver of a vehicle or operator of a street-car shall drive between the vehicles comprising a funeral or other authorized procession while it is in motion. This provision shall not apply at intersections where traffic is being controlled by traffic-control signals or police officers.

(2) Funeral processions shall be identified as such by each vehicle therein having its headlights illuminated.

(3) The route taken by any funeral procession consisting of vehicles, and persons on foot shall be subject to the written approval of the Chief Constable.

EMERGING FROM LANE OR PRIVATE ROAD

35. The driver of a vehicle emerging from a lane, or from public or private premises shall stop such vehicle immediately prior to driving onto a sidewalk or boulevard or into any lane.

TURNING AT INTERSECTIONS

36. The driver of a vehicle intending to turn at an intersection shall do so as follows, unless a different method of turning is directed by buttons, markers, or signs, in which event turns shall be made in accordance with the directions of such markers, buttons, or signs:

- (a) Both the approach for a right turn and a right turn shall be made as close as practicable to the right hand curb or edge of the roadway.
- (b) Approach for a left turn shall be made in that portion of the right half of the roadway nearest the centre line thereof. The left hand turn shall be made by passing to the right of the point where the centre line of the street touches the crosswalk, and upon leaving the intersection by passing to the right of the point where the centre line of the street then entered touches the crosswalk.
- (c) Upon one-way streets a left turn may be made by vehicles proceeding on the left side of such one-way street from the left of the centre line of such street but as close as practicable to the left curb.

LIMITATIONS ON "U" OR REVERSE TURNING

37. (1) No driver of any vehicle shall turn such vehicle so as to proceed in the opposite direction:

- (a) On any through street.
- (b) Within an intersection at any corner of which a stop sign has been placed, or where a traffic-control signal has been installed.

- (c) At any other intersection unless such movement can be made in safety, without backing, and without interfering with other traffic.
- (d) On any street between intersecting streets.
- (e) At any lane intersection.

(2) The provisions of this section shall not apply to the driver of any bus in arriving at a terminus of any route, but such driver in making any "U" turn shall do so with due regard to public safety.

LIMITATIONS ON BACKING

38. The driver of a vehicle shall not back the same into an intersection or over a crosswalk and shall not in any event or at any place back a vehicle unless such movement can be made in safety.

CONTROL OF VEHICLE IN MOTION

39. Every driver or other person in charge of any vehicle conveying goods, wares, or merchandise in or through any of the streets of the City shall remain upon such vehicle, or walk beside the horse or animal drawing the same, so as at all times to control the same while such vehicle is in motion.

DRIVER MUST HAVE HAND ON STEERING DEVICE

40. No person shall drive a vehicle without having at least one hand on the steering device, and no person shall operate a bicycle without having at least one hand on the handle bars.

TURN AT INTERSECTIONS ONLY

41. No driver of a vehicle shall drive such vehicle from one side of a street to the other at any place other than at an intersection or street end, unless such driver shall have first ascertained that such movement can be made without obstructing traffic and can be made in safety having regard to the nature, condition, and use of the roadway, and the traffic which actually is at the time or might reasonably be expected to be on the highway.

STOP WHEN TRAFFIC OBSTRUCTED

42. No driver of a vehicle or the operator of a street-car shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle or street-car he is operating without obstructing the passage of other vehicle or pedestrians, notwithstanding any traffic-control signal indication to proceed.

VEHICLES FOR HIRE - STOPPING IN DESIGNATED STANDS ONLY.

43. (1) No driver of a vehicle kept, used, or operated for hire, when such vehicle is ~~not~~ engaged and is waiting to be hired, shall stop such vehicle upon any street at any place other than a stand designated and allotted as and for the particular class of vehicle for hire indicated by traffic signs; provided however, that nothing herein contained shall be deemed to prevent such drivers from stopping temporarily in any other place for the purpose of taking on or discharging passengers or goods.

(2) Any such driver when arriving at any such stand not already fully occupied by the designated number of vehicles to be accommodated on such stand, shall stand such vehicle in the rear of the other vehicle or vehicles already occupying such stand.

(3) When a vehicle shall be called or driven off any such stand, the drivers of each of the other vehicles stationed on such stand in the rear of the vehicle so called or driven off shall cause their respective vehicles to be moved forward so that every vehicle shall in succession fill the place which shall have been previously occupied immediately in advance of such vehicle by the vehicle moved forward in accordance with the provisions of this by-law.

EMERGENCY AND PUBLIC UTILITY VEHICLES

44. (1) Exemption to Emergency Vehicles.

The provisions of this by-law regulating the operation, movement, stopping and parking of vehicles shall not apply to any emergency vehicle while it is responding to an emergency call and sounding its siren, exhaust whistle or bell or while attending at any emergency call, but this exemption shall not excuse the driver of any such vehicle from exercising due and proper care for the safety of other traffic.

(2) Exemptions to Public Utility Vehicles.

The provisions of this by-law prohibiting stopping or parking shall not apply to

- (a) Municipal or provincial utility vehicles
- (b) Vehicles of a public utility corporation
- (c) Wrecking vehicles

while such vehicles are actually engaged in works of necessity requiring them to be stopped or parked in contravention of any of such provisions.

This exemption shall not relieve the drivers of such vehicles from taking due precautions to indicate the presence of such vehicle on the street while so parked or stopped.

45. Duty of Drivers on Approach of Ambulances and Other Emergency Vehicles.

(1) Upon the approach of an ambulance, when the driver or other person therein is giving audible signals by siren, exhaust whistle or bell, or on the sounding of any siren or bell placed on any street for the purpose of giving warning of the approach of any emergency vehicle, the driver of every other vehicle shall immediately drive to a position parallel, and as close as possible, to the right hand curb or edge of the roadway, clear of any intersection, and shall stop and remain in such position until such ambulance has passed, except when otherwise directed by a police officer. (See extracts Motor Vehicle Act for duty of drivers on approach of fire and police vehicles.)

(2) Street-Cars.

Upon the approach of any emergency vehicle when the driver thereof or any other person therein or thereon is giving

audible signals by siren, exhaust whistle or bell, or on the sounding of any siren or bell placed on any street for the purpose of giving warning of the approach of any emergency vehicle, the moter-man of every street-car shall immediately bring such street-car to a stop clear of any intersection and shall keep it in such position until such emergency vehicle has passed, except when otherwise directed by a police officer.

Emergency Vehicles to Sound Siren.

46. The driver of every emergency vehicle while responding to an emergency call shall sound or cause to be sounded continuously a siren horn, exhaust whistle, or bell attached to such vehicle.

WARNING BELLS OR SIGNALS ON BRIDGES

47. Every person operating any vehicle or driving any animal or operating any street-car along any bridge where warning bells, signals, gates, or barriers are installed shall immediately on the ringing of such bells or the operating of such signals, come to a full stop clear of any such gates or barriers, and shall remain stationary until such gates or barriers shall have been removed and traffic shall have been permitted to again proceed.

REGULATING SIRENS, HORNS, BELLS

48. Other Sirens Prohibited.

Except as provided in the preceding section, no person shall use any siren horn or exhaust whistle, on any vehicle in any street.

49. Horn for Warning Only.

No person shall sound the horn of a vehicle except when necessary to warn a person or animal of danger.

50. Bell Required on Bicycle.

Every bicycle shall be equipped with a bell to be used as a warning of danger.

FOLLOWING FIRE APPARATUS PROHIBITED

51. No driver of any vehicle other than a vehicle of the Fire or Police Department or an ambulance shall follow closer than a city block any fire apparatus travelling response to a fire alarm, or to drive into or stop any vehicle within the block where fire apparatus has stopped in answer to a fire alarm.

CROSSING FIRE HOSE

52. No driver of a vehicle nor any operator of a street-car shall drive such vehicle or street-car on, over, or across any fire hose laid on any street or private road, unless directed so to do by the person in charge of such hose or a police officer.

FIREMEN MAY DIRECT TRAFFIC IN VICINITY OF FIRE

53. Any officer or member of the Fire Department may, while in the course of duty in or about any fire, or in order to expedite traffic and safeguard pedestrians, direct traffic on any street in the vicinity of any fire. No person shall fail to comply with the directions of any such officer or member of such Fire Department.

SLOW MOVING VEHICLES

54. The driver of every slow moving vehicle shall drive such vehicle as close as possible to the right hand edge or curb of

any street unless it is impracticable to travel on such side, For the purpose of this section a bicycle shall be regarded at all times as a slow moving vehicle.

BICYCLES

55. No person shall ride any bicycle upon any sidewalk. (See extracts from "Highway Act" at back of book for other regulations concerning bicycles.)

PASSENGERS IN MOTOR VEHICLES

56. No person shall drive a motor vehicle with more than three persons in the front seat, including the driver.

57. No person shall ride in or on any part of a vehicle except that provided for carrying purposes, nor shall he permit any part of his body to extend outside of any part of a vehicle, except when required to extend the hand to indicate an intention to turn, slow down, stop, or start from the curb. This section shall not apply to vehicles of the Fire Department.

58. No person while riding in or on any vehicle shall do any act which will interfere with the driver's proper control of such vehicle.

TRAFFIC TICKETS

59. No person other than the owner or operator of a vehicle shall remove any notice placed thereon or affixed thereto by a police officer in the course of his duties in checking violations of this by-law.

PART II

REGULATING THE USE OF STREETS

MERCHANDISE NOT TO BE DISPLAYED ON STREET OR SIDEWALK.

60. No person shall place or cause or suffer to be placed by any person in his employ or under his control, any merchandise, vehicle, chattel, or wares of any nature on any street or sidewalk for the purpose of sale or display, or for any other purpose whatsoever except in the actual course of receipt or delivery, or to use any portion of any sidewalk for the purpose of selling any goods, wares, or merchandise of any nature or for measuring, packing, or unpacking goods, wares or merchandise.

THROWING OR PLACING GARBAGE, STORE SWEEPINGS, ETC. ON STREETS PROHIBITED

61. No person shall deposit or throw, or cause to be deposited or thrown, any dirt, ashes, filth, garbage, refuse, carcasses of animals, sweepings from stores, litter, rubbish or any noxious, offensive or filthy water on any sidewalk or street.

GLASS, ETC. TO BE REMOVED FROM STREET

62. No person shall throw or deposit or let fall from, or out of, any vehicle, any oil, glass, crockery, nails, wood, refuse or any substance whatever upon or onto any street; and the person from whose vehicle any such materials have been thrown or deposited or fell as aforesaid shall forthwith take all reasonable precautions for the safety of traffic resulting therefrom and also cause to be

removed such oil, glass, crockery, nails, wood, refuse, or any other substance from such street.

GARBAGE CONVEYED THROUGH STREETS MUST BE COVERED

63. No person shall drive, ride or propel any vehicle containing any garbage (as defined by the Garbage By-law of the City) on any street in the City unless such vehicle shall be kept tightly and securely covered in such manner as to prevent any of such garbage from being blown, dropped or spilled from such vehicle.

SPORT OR AMUSEMENT PROHIBITED IN ANY STREET

64. No person shall engage in any sport, amusement, exercise, or occupation on any street likely or calculated to frighten horses or embarrass or delay the passage of vehicles, or to cause any obstruction whatsoever in or upon such street, except with the written permission of the Council.

WASHING OR REPAIRING VEHICLES

65. No person shall stand or park any vehicle on any street for the purpose of washing, greasing, or repairing such vehicle except repairs necessitated by an emergency.

CROWDS OR GROUPS OBSTRUCTING TRAFFIC

66. (1) No person shall form part of a group of persons congregated on a street in such a manner as to obstruct the free passage of pedestrians or vehicles, except with the written permission of the Council.

(2) No person shall do anything which will attract the attention of persons and cause them to congregate in a group upon any street in such a manner as to obstruct the free passage of pedestrians or vehicles, or in such manner that the persons so congregated might themselves be in danger of injury from traffic, except with the written permission of the Council.

LOITERING ON STREETS PROHIBITED

67. No person shall stand or loiter on any street in such a manner as to obstruct or impede or interfere with traffic thereon.

STRUCTURES, ETC., NOT ALLOWED ON STREET

68. (1) No person shall build, construct, place, maintain, occupy, or cause to be built, constructed, placed, maintained or occupied (except in accordance with any By-law of the City, or except with the approval of and subject to such conditions as shall be determined by the Council) in any street, any structure, object, substance, or thing which is an obstruction to the free use of such street, or which may encroach thereon, or lay or construct, or reconstruct any sidewalk on any street, without first obtaining therefor the written permission of the City Engineer.

(2) No person owning or occupying any property abutting on or contiguous to any street shall allow or permit any earth, rock, stones, trees, logs, stumps or other substances or materials to cave, fall, crumble, slide, accumulate or to be otherwise deposited from any such premises upon any street or having been so deposited to remain thereon.

(3) No owner or occupier of any premises shall permit any flow of water in any land or premises under his control on or over any street.

IMPEDING TRAFFIC ON STREET PROHIBITED

69. No person shall cut, saw, break, split, place, or pile firewood, lumber, blocks, rock, stone, debris, or other materials, or mix mortar, or do any other act upon any street which will obstruct or impede traffic thereon or deface or injure such street.

70. (1) No person shall erect any doorstep, porch, railing, or projection into or obstruction in any street, without permission in writing from the City Engineer.

(2) The City Engineer or Chief Constable may remove or cause to be removed any unauthorized doorstep, porch, railing, or projection into or obstruction in any street. The cost of such removal shall be charged to the owner thereof and the City Solicitor is hereby authorized to institute proceedings in any Court of competent jurisdiction to recover such cost.

TETHERING ANIMALS IN PUBLIC PLACES

71. No person shall leave any horse or other animal attached to any vehicle in any street without being tethered in such manner as to prevent such horse or other animal from running away or from moving on the street in any way so as to obstruct or impede other traffic thereon.

72. No person shall tie or fasten any horse or other animal to any tree, traffic sign or lamp standard.

REMOVAL OF SNOW OR ICE FROM SIDEWALK

73. The owner or occupier of any premises shall remove all snow and ice from any sidewalk in front of or adjacent to such premises not later than ten o'clock in the morning of any day except Sunday in any business district. In the event of such owner or occupier failing to remove such snow or ice as herein provided, the City may remove the same at the expense of such owner or occupier; and the City may recover the cost or expense thereof from such owner or occupier so in default by action in any Court of competent jurisdiction, or in the manner provided in the "Vancouver Incorporation Act 1921" for the recovery of overdue taxes.

COASTING AND SLIDING ON STREETS

74. No person shall coast or slide with sleds, skis, skates, or other apparatus on any street, lane, or other public place; provided, however, that the Council may declare any street, lane or other public place closed to all other traffic for the purpose of permitting coasting with sleds, skis, skates, or other apparatus thereon; and the Chief Constable may make such provision for prohibiting such other traffic and with the assistance of the City Engineer may make such provision for protecting such persons using such streets, lanes, or public places as aforesaid for the purpose of enabling such coasting and sledding to be carried on with safety.

INJURY TO TREES AND FLOWERS PROHIBITED

75. No person, other than a duly authorized officer or employee of the City or the Park Board acting in pursuance of his duties, shall dig up or in any manner injure or destroy any tree, flower, foliage, flowering plant, foliage plant, or shrubbery in any street.

DRIVING OVER CURBS PROHIBITED

76. No person shall ride, drive or lead any animal, or move, drive, run, or propel any vehicle over or across any curb unless such curb has been lowered or otherwise constructed or reconstructed to form a suitable crossing, and permission to lower, construct, or reconstruct such curb or crossing having first been obtained in writing from the City Engineer. No planks or other material shall be placed in any gutter or ditch or against any curb for the purpose of making a crossing except as a temporary expedient and with the written permission of the City Engineer; and such person shall, before obtaining such written permission of the City Engineer, furnish security to the satisfaction of the Engineer to an amount at least equal to the estimated cost of constructing such temporary crossing as aforesaid.

DRIVING ON SIDEWALK OR BOULEVARD PROHIBITED

77. (1) No person shall ride, drive, or lead any animal, or move, drive, run, or propel any vehicle (except light carriages or chairs for the conveyance of children or invalids), along, over, or across any sidewalk or boulevard except at

- (a) Lane crossings or sidewalk crossings specially constructed for vehicular traffic.
- (b) Locations for which the City Engineer has granted written permission and then subject only to the conditions contained in such permission.

(2) The City Engineer may as one of the conditions of such permission require that security be furnished to an amount satisfactory to him guaranteeing the replacement of the sidewalk or boulevard to its original condition in case of damage thereto.

REGULATING ADVERTISING DEVICES

78. (1) No person shall drive or propel along any street in the City any vehicle bearing or carrying any advertising device of a temporary character unless permission in writing therefor has first been obtained from the Chief Constable of the City.

(2) No person shall operate or stand or park on any street any vehicle for the sole or primary purpose of displaying advertising, without first having obtained permission therefor from the Council.

(3) No person shall operate, stand or park any vehicle upon any street for the purpose of displaying it for sale.

79. Persons Carrying Advertising Devices.

No person shall carry any advertising device on or along any street without first having obtained permission therefor in writing from the Chief Constable.

80. Defacing Sidewalk.

No person shall mark or imprint or in any other manner whatsoever deface any sidewalk in the City, or place thereon any advertising device or characters in any manner whatsoever, without first having obtained written permission therefor from the Council.

81. Distributing Handbills, etc.

No person shall give or cause to be given to any other person in or upon any street any handbill, dodger, circular, card or other advertising matter or thing of such nature or character that the person to whom the same is given will probably throw or deposit the same so as to litter any part of any street or otherwise be or become a nuisance thereon.

82. Placing Handbills, etc. in Vehicles.

No person shall place or cause to be placed any handbill, dodger, circular, card or other advertising matter upon or in any vehicle upon a street without the permission of the owner or person in charge of such vehicle.

CLOSING STREETS

83. When owing to work of construction, repair, or maintenance, or owing to damage by accident or storm or other emergency, any street, or any portion thereof, is unsafe or unsuitable for traffic, or it is necessary that traffic should be restricted thereon or diverted therefrom, the City Engineer or the Chief Constable, or any person duly authorized by either of them, may close such street, or portion thereof, or restrict or divert the traffic thereon or therefrom, and for that purpose may erect or place lamps, barriers, signboards, notices, or other warnings upon such street, or portion thereof; and no person shall enter upon, or travel upon, such street, or portion thereof, so closed as aforesaid, or enter upon or travel thereon contrary to the restrictions placed upon the traffic thereon as aforesaid, or remove, damage, alter or destroy, or attempt to remove, damage, alter or destroy any lamp, barrier, signboard, notice, or warning so placed as aforesaid.

EXCAVATIONS TO BE PROTECTED OR GUARDED

84. Every person who shall make any excavation for any purpose adjoining or adjacent to any street within the City, shall build and maintain a good and sufficient fence or other barrier along the line of such street so as to effectually guard such excavation and to protect and guard persons, horses, and vehicles travelling along such street against danger, risk or accident by reason of such excavation.

REGULATION OF PARADES

85. (1) "Parade" means any procession or body of pedestrians (except members of the Armed Forces) numbering more than thirty standing, marching or walking on any street or sidewalk, or any street or sidewalk, or any group of vehicles numbering ten or more (except funeral processions) standing or moving on any street.

(2) No person shall be a member of, or take part in, any parade unless:

- (a) Such parade be under the direction or control and in charge of some one person as marshal or organizer, and
- (b) A written permit for such parade has been issued to such marshal or organizer by the Chief Constable, as hereinafter provided, and
- (c) Flags are carried or displayed as hereinafter provided.

(3) No parade shall be held unless application therefor has been made in writing to the Chief Constable by the marshal or organizer or other person in charge thereof at least twenty-four hours before the parade commences. Such application shall specify the nature of the parade, the day and hour on or at which such parade is to be held, the place or places of formation or commencement thereof, the route intended to be taken, the point of disbandment or dispersal of same, and the approximate length thereof.

(4) The Chief Constable may issue a permit for a parade subject to any directions he may impose as to time, route, or otherwise. If any deviation from such directions is made, or if such directions be not otherwise complied with, (save as directed by the Chief Constable) the permit shall be void and of no effect.

(5) The British national flag, unfurled, and measuring not less than three feet by six feet in size, shall be prominently, properly and continuously displayed at the head of each parade. If any flags or emblems of other nations, societies, organizations or associations are displayed the same shall be displayed under or behind the British national flag.

VIOLATION OF BY-LAW

86. Every person who violates any of the provisions of this by-law, or who suffers or permits any act or thing to be done in contravention or in violation of any of the provisions of this by-law, or who neglects to do or refrains from doing anything required to be done by any of the provisions of this by-law, or who does any act which violates any of the provisions of this by-law, shall be deemed to be guilty of an infraction thereof and liable to the penalty hereinafter provided.

PENAL CLAUSE

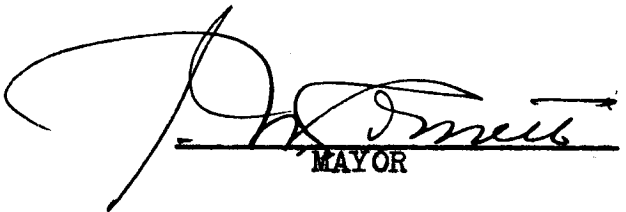
87. Any person guilty of an infraction of this by-law shall, upon conviction thereof before the Mayor, Police Magistrate, or any two Justices of the Peace, or other Magistrate or Magistrates having jurisdiction in the City of Vancouver, on the oath or affirmation of any credible witness, forfeit and pay at the discretion of the said Mayor, Police Magistrate, Justices, or other Magistrate or Magistrates convicting, a fine or penalty not exceeding the sum of one hundred dollars and costs for each offence, and in default of payment thereof forthwith, it shall be lawful for such Mayor, Police Magistrate, Justices, or other Magistrate or Magistrates convicting as aforesaid, to issue a warrant under his or their hand and seal to levy the said fine or penalty and costs, or costs only, by distress and sale of the offender's goods and chattels; and in case of no distress or insufficient distress found to satisfy the said fine or

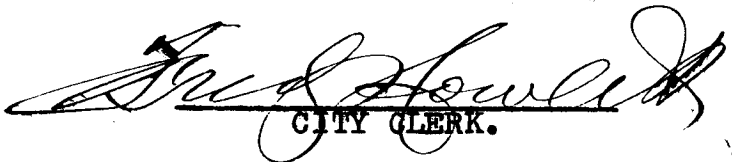
penalty, it shall and may be lawful for the Mayor, Police Magistrate, Justices, or other Magistrate or Magistrates convicting as aforesaid, to commit the offender to the common gaol or any lock-up house in, of, or for the City of Vancouver for any period not exceeding two months (with or without hard labour) unless the said fine or penalty be sooner paid.

1874,
88. By-laws/2234, 2330, 2395, 2417, 2419, 2422, ²⁴⁷⁷2505, 2508, 2515, 2521, 2527, 2530, 2533, 2538, 2539, 2543, 2555, 2557, 2570, 2578, 2587, 2590, 2591, 2593, 2595, 2599, 2605, 2607, 2611, 2617, 2623, 2630, 2641, 2646, 2653, 2658, 2660, 2664, 2670, 2671, 2675, 2682, 2684, 2693, 2694, 2696, 2697, 2705, 2710, 2711, 2715, 2717, 2723, 2729, 2730, 2732, 2735, 2739, 2745, 2750, 2753, 2758, 2761, 2766, 2775, 2776, 2784, 2785, 2792, 2796, 2801, 2831, 2835, 2841, are repealed; but every resolution passed pursuant to any of the above by-laws shall remain in force until varied or repealed in accordance with the provisions of this by-law.

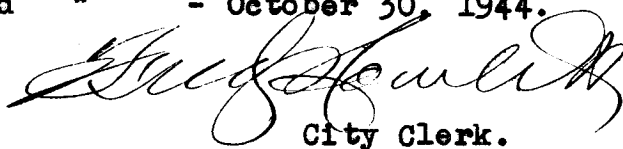
89. This By-law shall come into force and take effect on and after the date of the final passing hereof.

DONE AND PASSED in open Council this 30th day of October, 1944.


MAYOR


CITY CLERK.

This By-law received:
1st reading - October 30, 1944.
2nd " - October 30, 1944.
3rd " - October 30, 1944.


City Clerk.